is partitioned between the Centre and the states not by any law to be made by the Centre but by the Constitution itself. This is what the Constitution does. The states are in no way dependent upon the Centre for their legislative or executive authority. The states and the Centre are co-equal in this matter. It is difficult to see how such a Constitution can be called centralism. It is, therefore, wrong to say that the states have been placed under the Centre. The Centre cannot by its own will alter the boundary of this partition. Nor can the judiciary".[15]

In the *Bommai* case[16] (1994), the Supreme Court laid down that the Constitution is federal and characterised federalism as its 'basic feature'. It observed: "The fact that under the scheme of our Constitution, greater power is conferred upon the Centre *vis-a-vis* the states does not mean that the states are mere appendages of the Centre. The states have an independent constitutional existence. They are not satellites or agents of the Centre. Within the sphere allotted to them, the states are supreme. The fact that during emergency and in certain other eventualities their powers are overridden or invaded by the Centre is not destructive of the essential federal feature of the Constitution. They are exceptions and the exceptions are not a rule. Let it be said that the federalism in the Indian Constitution is not a matter of administrative convenience, but one of principle—the outcome of our own process and a recognition of the ground realities".

In fact, the federalism in India represents a compromise between the following two conflicting considerations[17]:

**(i)** normal division of powers under which states enjoy autonomy within their own spheres; and

**(ii)** need for national integrity and a strong Union government under exceptional circumstances.

The following trends in the working of Indian political system reflects its federal spirit: **(i)** Territorial disputes between states, for example, between Maharashtra and Karnataka over Belgaum; **(ii)** Disputes between states over sharing of river water, for example, between Karnataka and Tamil Nadu over Cauvery water; **(iii)** The emergence of regional parties and their coming to power in states like Andhra Pradesh, Tamil Nadu, etc.; **(iv)** The creation of new states to fulfil the regional aspirations, for example, Mizoram or Jharkhand or Telangana; **(v)** Demand of the states for more financial grants from the Centre to meet their developmental needs; **(vi)** Assertion of autonomy by the states and their resistance to the interference from the Centre; **(vii)** Supreme Court's imposition of several procedural limitations on the use of Article 356 (President's Rule in the States) by the Centre.[18]

[1]*Constituent Assembly Debates*, Volume VII, p. 43.

[2]The American Constitution originally consisted of 7 Articles only, the Australian 128 and the Canadian 147.

[3]The various amendments carried out since 1951 have deleted about 20 Articles and one Part (VII) and added about 95 Articles, four Parts (IVA, IXA, IXB and XIVA) and four Schedules (9,10,11 and 12).

[4]A majority of two-thirds of the members of each House present and voting and a majority of the total membership of each House.

[5]Till 2019, the erstwhile state of Jammu and Kashmir enjoyed a special status by virtue of Article 370 of the Constitution of India.

[6]K.C. Wheare: *Federal Government*, 1951, p. 28.